

Aakash Shrikant Sanas And 4 Others vs State Of Mah. Thr. Pso Ps Pardi Nagpur ... on 6 May, 2022

Author: V.M. Deshpande

Bench: V.M. Deshpande, Amit Borkar

Judgment

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY,
NAGPUR BENCH, NAGPUR.

CRIMINAL APPLICATION (APL) NO. 593/2022

- 1] Aakash Shrikant Sanas (Husband),
Aged about 35 years, Occ. Private Job,
- 2] Sagar Shrikant Sanas (Brother-in-law),
Aged about 39 years, Occ. Nil,
- 3] Yogita Shrikant Sanas (Sister-in-law),
Aged about 36 years, Occ. Nil,
- 4] Manohar Sahadev Shinde (Maternal Uncle),
Aged about 52 years, Occ. Service,
R/o. 279 Sabhaji Nagar, C-Wing,
Room No. 15, 3rd Floor, N.M. Joshi Marg,
Near N.M.C., Lower Parel, Mumbai
- 5] Anuradha Shrikant Sanas (Mother-in-law),
Aged about 50 years, Occ. Housewife,

Applicant Nos. 1 to 3 and 5 are R/o.
Nehru Gunj, Behind Mata Mandir,
Itarsi, Hoshangabad, Madhya Pradesh 461111

.... APPLICANT(S)

// VERSUS //

- 1] State of Maharashtra,
Through Police Station Officer,
Police Station Pardi, Nagpur
Tahsil & District Nagpur

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2] Mrs. Megha W/o Akash Sanas,
Aged about 31 years, Occ. Private Job,
R/o. 706, B, Subhash Maidan, Talpura,
Pardi, Nagpur

.... NON-APPLICANT(S)

Shri A.J. Mirza, Advocate for the Applicant(s)
Shri T.A. Mirza, APP for the Non-applicant/State
Shri P. Deshpande, Advocate for the Non-Applicant No. 2

CORAM : V.M. DESHPANDE & AMIT BORKAR, JJ.
MAY 06, 2022

ORAL JUDGMENT : (PER:- V.M. DESHPANDE, J.)

1] RULE. Rule is made returnable forthwith. Heard finally by consent of the parties.

2] By this Application under Section 482 of the Code of Criminal Procedure, the Applicants who are husband the relatives of the Non-Applicant No. 2 have prayed for quashment of the F.I.R. No. 552/2021 registered with the Police Station Pardi, Nagpur for the offences punishable under Sections 498-A, 323, 504, 506 read with Section 34 of the Indian Penal Code. They have also challenged the Final Report filed by the Non-Applicant No. 1 - Police Station in that offence.

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3] Today, when the matter was taken up for admission, that

time the Non-Applicant No. 2 is personally present in the Court. She is also represented by the Advocate. On the query from the Court, she submitted that there is no pressure on her for withdrawal of the First Information Report and the Final Report.

4] It is also pointed out to the Court by her as well as the Applicant No. 1 that they have filed the Petition under Section 13-B of the Hindu Marriage Act for dissolution of marriage by mutual

consent which is pending in the Court of learned Judge, Family Court, Nagpur. The Non-Applicant No. 2 had also filed the affidavit stating therein that she is not interested in prosecuting her complaint against the Applicants. 5] The nature of the offences stated in the First Information Report are purely personal in nature. In that view of the matter and when the Complainant herself is not ready to prosecute the matter against the Applicants, it will be a sheer abuse of legal process if the Charge-sheet is allowed to be continued.

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6] In that view of the matter, we pass the

(a) The Application is allowed

(b) F.I.R. No. 552/2021 regist

Station Pardi, Nagpur for the offences punishable under Sections 498-A, 323, 504, 506 read with Section 34 of the Indian Penal Code together with the Final Report No. 41/2022 dated 23/03/2022 and R.C.C. No. 1472/2022 pending on the file of learned Judicial Magistrate First Class, Court No. 3, Nagpur are quashed and set aside.

Rule is made absolute in the above terms. No costs. Pending Application(s), if any, stand(s) disposed of.

(JUDGE)

Signed By:AKRAM PARVEZ
MAQSOOD AHMAD ANSARI
Private Secretary to Hon'ble Judge
Signing Date:06.05.2022 14:18

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